

Case Study 4: Ethics in the 21st Century

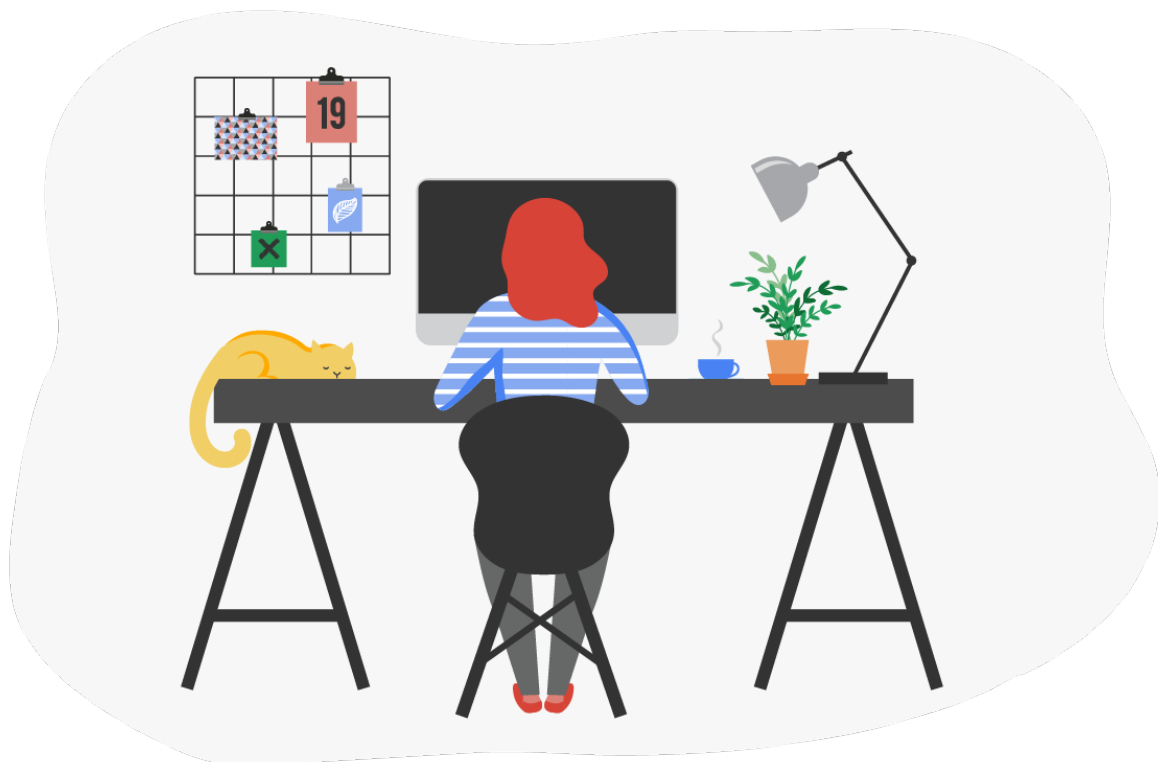
by Sophia



WHAT'S COVERED

In this lesson, you will practice applying ethics in the modern workplace. Specifically, this scenario will have decisions about:

1. Entering a Contract



You are a copywriter with decades of experience and have worked in the marketing department of major corporations. Your resume and accomplishments are extensive. You have been working as a freelancer and independent contractor for the last ten years, contributing to the gig economy. You enjoy not having to commute due to remote work, because you believe an extra benefit of remote work is helping to save the environment by not using as much fuel. It helps you feel as if you're doing your part.

In addition to the environmental benefit, which is an important cause to you, you have a disability, and working remotely and on your own schedule is ideal. It also works well for the companies you contract with, because as you remember from an earlier tutorial, it reduces overhead, increases productivity, and decreases

turnover.

Copywriting tends to follow the peaks and valleys of the economy itself, with a glut of work when the economy is booming and slimmer pickings when the economy is stagnant. You are good at financial planning, working long hours and setting aside money when you can to see you through the tough times. The pandemic was particularly tough, however, and longer than usual. Your savings dwindle.

At last, you get a big opportunity—a company with many needs, including website copy, product descriptions, and an internal newsletter. These are all things you’ve done before, and the client offers the contract almost immediately because of the breadth of your background. However, as you discuss the position, they emphasize several times that they only have a budget for six months of work at about 30 hours a week. You know that the work will take considerably more time than they project and wonder if you should tell them or not. Your concern is that if you tell them, they will retract their offer and give the job to somebody else. However, you are also concerned that you will be working too hard, and sometimes off the clock, to meet their demands.



“Does that all sound doable?” they ask. How do you respond?

Say yes so you can get the job; you can always ask for more time down the road.

+

While this is understandable since you need the job, it may lead to trouble for you when you can’t meet their deadlines. Indeed, because you have said the deadlines are realistic, it’ll be hard to explain later that you need more time.

Say no and decline the job, since it could mean rushed work or working off the clock to meet deadlines.

+

While this is understandable since it is wise to avoid unpleasant work situations, it may not be necessary to decline the job if you simply explain that the deadlines are unrealistic.

Tell them that based on your experience, their deadlines are unrealistic, and they should either make more time available or hire more than one person.

+

This is the best way to handle the situation. Although they may see you as “gunning” for more work and more money, being transparent about your concerns is the best way to enter the contract with a mutual understanding.

2. Disclosing a Disability

Fortunately, the company is receptive to your feedback about their expectations, and you enter into a contract with a more realistic timeline. You choose not to disclose your disability to them. Because your meetings are all remote, it is easy to keep this confidential, and because it is rarely a factor, you have not seen any reason to mention it. In truth, you worry about discrimination and unconscious bias, so you prefer to keep your privacy.

However, you have a stretch of days where you are in a lot of pain and have to rest more than usual. Moreover, when you do work, it takes longer than usual, so your ability to meet deadlines begins to be a challenge. You are in an uncomfortable position where you may need to explain that you have a disability you've been concealing. You don't think anybody will be upset about the disability itself, but the lack of transparency during the interview and for the first few months on the job might hurt your standing.



How do you receive the accommodations you need?

Explain to your work manager that you have a disability and why you kept it from them until now. +

You are free to do this if you choose to do so, but it is not necessary to tell anyone the nature of your disability unless you are comfortable doing so. You only need to explain that you need accommodations.

Continue to work as best you can without any explanation for missing deadlines. +

While this is within your legal rights and is not unethical, because you may miss deadlines, you may have more understanding if the reason is clear to your colleagues.

Contact human resources and explain the situation. +

Legally, the best process is to disclose your disability to the human resources department of the client company so you have the best legal protections to receive accommodations. You can then tell your manager simply that you need accommodations, but you do not need to go into details about your condition unless you feel comfortable doing so.

3. Use of Artificial Intelligence

You discover that an AI tool can help you produce work more quickly. You can simply describe the task and the AI spits out paragraphs of copy. It's amazing how "normal" it sounds! You feel like using this technology will speed up your work but are worried if you tell the company, they will see no further need for a copywriter and simply let the AI do the work.



Is it ethical to "outsource" your job to this tool, and if so, should you tell the client?

Do not use the tool or mention it to the company. +

This is the safest course of action legally and ethically. Perhaps the only ethical concern is knowing that you can speed up the process and help the company meet deadlines and save money, but you are keeping your end of the contract as agreed and furthermore, handing in quality work. However, it

is unrealistic to believe the company will not discover the AI tool on their own.

Use the tool and do not mention it to the company.

+

This is perhaps the least wise and ethical approach, especially if you bill the same hours as the company was expecting for the work. They may notice a decline in the quality of the work you hand in, since AI has many limitations, and if they discover the workaround, they may feel that you have breached your contract.

Use the tool and tell the company.

+

Perhaps the best way to approach this is to see the AI as a time-saving tool like spellcheck. You can use it to help you brainstorm, for example, or in generating an outline which you then fill in with your usual panache, adhering to company style. Explaining that these tools are helping you meet or exceed deadlines but being clear about your own role in polishing the copy will help the company appreciate that you cannot be replaced by a “bot.” Furthermore, whether you use the tool or not, it is unrealistic to believe the company will not discover the AI tool on their own.

4. Generational Differences

After nine months of contract work, the company offers you a full-time, permanent position. You decline, explaining that you are approaching retirement but are happy to continue working as a contractor for another year or two. They agree and hire a younger worker with a marketing degree but little experience. He is your assistant, and part of your job is to train him to take over when you retire.

Unfortunately, you quickly discover a friction between you and your assistant. During your virtual meetings, and when you do meet, he seems to be multitasking; sometimes you even hear a TV show playing in the background. You feel like you don’t have his complete attention. Furthermore, he seems disrespectful. He says “gotcha” instead of “thanks,” and “no prob” instead of “you’re welcome.” He shows up to these meetings wearing T-shirts or other casual attire.

You feel it’s important to teach your assistant not just the job itself, but the culture of business and professionalism. He dismisses these as “old timer” or “boomer” concepts, which is a meta-stereotype, as you learned in a previous tutorial. He tells you his generation is different. As his manager, and to attempt to bridge the generation gap, you want to lead by example and initiate effective communication to create mutual understanding. Further complicating your relationship is that he is a person of color, and you are not, so you are unsure what criticisms will be interpreted as prejudicial or microaggressive.



How can you ease the working relationship and also feel good about your own role as mentor?

File a complaint about his behavior with human resources.

+

Unless the behavior crosses the line into objectively rude or discriminatory, this is an excessive step

and unlikely to help ameliorate the situation.

Wait for the performance review and mention the behaviors then.

+

Depending on how you do it, this might be a good way to give feedback to the assistant on how his behavior is perceived by others; it should be done constructively and with specific suggestions for improvement. However, it isn't fair to bring up issues on the performance review if you have never mentioned them previously. It is also important to acknowledge that some of these differences are cultural and generational.

Do nothing, but hope you model professionalism, and in time, he will change.

+

This is understandable, but since part of your role is to mentor the staff member, it might be better for both you and him to give constructive feedback.

Ask questions about his background and goals.

+

This would be a great way to better understand his behavior, and knowing his professional goals would give more context to your feedback on his professional style. Moreover, it would give you an opportunity to explain your own background and values. Understanding each other and appreciating your differences will make the mentorship more successful.



SUMMARY

In this case study, you practiced ethical decision making from the perspective of a contract worker. When **entering a contract**, you had to decide whether to be honest about the employer's expectations and risk losing the job. When you found yourself unable to meet deadlines, you had to decide whether to **disclose your disability** and how to do so. You discovered that you could **use artificial intelligence** to speed up your work but wondered how to best use it and whether or not to tell your manager. Finally, you struggled with **generational differences** that made it difficult to find a good working relationship with a much younger worker.

Source: THIS TUTORIAL WAS AUTHORED BY SOPHIA LEARNING. PLEASE SEE OUR [TERMS OF USE](#).